

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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TRAVIS DOWNER,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. JEREMY RODRIGUEZ,
Shield No. 24012, Individually and in his Official Capacity,
P.O. MARIELEN DERASMO, Shield No. 8644,
Individually and in her Official Capacity, and POLICE
OFFICERS "JOHN DOE" #1-10, Individually and in their
Official Capacity (the name John Doe being fictitious, as the
true names are presently unknown),

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
January 10, 2017

COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

TO:

ZACHARY W. CARTER
Corporation Counsel of the City of New York
Attorney for Defendant THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

P.O. JEREMY RODRIGUEZ, Shield No. 24012
52nd Precinct
3016 Webster Ave.
Bronx, NY 10467

SUMMONS

Jury Trial Demanded

Plaintiff designates Bronx County as
the place of trial.

The basis of venue is:
CPLR 504(3)

P.O. MARIELEN DERASMO, Shield No. 8644
52nd Precinct
3016 Webster Ave.
Bronx, NY 10467

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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TRAVIS DOWNER,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. JEREMY RODRIGUEZ, Shield No. 24012, Individually and in his Official Capacity, P.O. MARIELEN DERASMO, Shield No. 8644, Individually and in her Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

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VERIFIED COMPLAINT

Jury Trial Demanded

Index No.

BASIS FOR VENUE:

CPLR § 504(3)

Plaintiff TRAVIS DOWNER, by his attorneys, COHEN & FITCH LLP, complaining of the defendants, respectfully alleges as follows:

FACTS

1. Plaintiff TRAVIS DOWNER is an African American male and has been at all relevant times a resident of Bronx County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants, P.O. JEREMY RODRIGUEZ, Shield No. 24012, Individually and in his Official Capacity, P.O. MARIELEN DERASMO, Shield No. 8644, and POLICE OFFICERS “JOHN DOE” #1-10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

8. On or about May 6, 2014, at approximately 2:09 p.m. in the County of Bronx, City, and State of New York, plaintiff TRAVIS DOWNER was in the vicinity of 3579 Dekalb Ave., Bronx, New York.

9. At the aforesaid time and place, NYPD officers accosted plaintiff, searched him, and then immediately placed him under arrest with his arms handcuffed tightly behind his back.

10. At no time on May 6, 2014, did defendants possess probable cause to arrest plaintiff.

11. At no time on May 6, 2014, did defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

12. Thereafter, plaintiff was transported to a nearby police precinct where he was detained in a holding cell, subjected to an invasive strip search, and charged with Criminal Possession of a Controlled Substance, Criminal Possession of Marijuana, and Unlawful Possession of Marijuana. Plaintiff was aware of his confinement and did not consent to same.

13. At no time did defendants possess the particularized suspicion necessary to justify an invasive strip search.

14. At no time on May 6, 2014 did plaintiff possess any controlled substances, marijuana, nor did he commit any of the aforementioned crimes or offenses or behave unlawfully in any way.

15. At no time on May 6, 2014 did the aforementioned searches of plaintiff – which were conducted by defendants – result in defendants’ recovery of any controlled substances, marijuana, or any other contraband on plaintiff’s person or in plaintiff’s custody and control.

16. In connection with plaintiff’s arrest, defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the Bronx County District Attorney’s Office. Specifically, defendants falsely stated that plaintiff had on his person, in his pants pocket, one (1) bag of a brown leafy substance with a distinctive order believed to be Khat. In addition, defendants falsely stated that plaintiff had in his custody and control, next to his feet, eighteen (18) bags containing a dried, green leafy substance with a distinctive order believed to be marijuana. Further, defendants falsely stated that plaintiff had in his custody and control, on the floor, next to his feet, one (1) bag containing a white, powdery substance believed to be cocaine.

Thereafter, defendants repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff's arrest.

17. As a result of his unlawful arrest, plaintiff TRAVIS DOWNER spent approximately twenty-four (24) hours in custody and made approximately twenty-four (24) court appearances over the course of approximately two (2) years and three (3) months before all charges against him were adjourned in contemplation of dismissal on or about August 31, 2016.

18. As a result of the foregoing, plaintiff TRAVIS DOWNER sustained, inter alia, loss of liberty, physical injury, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983 DEPRIVATION OF FEDERAL RIGHTS

19. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

20. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

21. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

22. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

23. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

24. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL

25. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

26. Defendants created false evidence against plaintiff.

27. Defendants forwarded false evidence and false information to prosecutors in the Bronx County District Attorney's office – namely, defendants falsely stated that plaintiff had on his person, in his pants pocket, one (1) bag of a brown leafy substance with a distinctive order believed to be Khat. In addition, defendants falsely stated that plaintiff had in his custody and control, next to his feet, eighteen (18) bags containing a dried, green leafy substance with a distinctive order believed to be marijuana. Further, defendants falsely stated that plaintiff had in his custody and control, on the floor, next to his feet, one (1) bag containing a white, powdery substance believed to be cocaine. Thereafter, defendants repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff's arrest.

28. Defendants misled the prosecutors by creating false evidence against plaintiff and thereafter providing false testimony throughout the criminal proceedings.

29. In creating false evidence against plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

30. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

THIRD CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
FALSE ARREST

31. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

32. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

33. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

FOURTH CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
UNLAWFUL SEARCH AND SEIZURE

34. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

35. Plaintiff was invasively strip-searched by defendants, without an individualized reasonable suspicion that plaintiff was concealing controlled substances or other contraband based on the particular characteristics of the plaintiff and/or the circumstances of his arrest.

36. As a result of the aforesaid conduct by defendants, plaintiff's person and possessions were illegally and improperly seized and searched without consent, a valid warrant, probable cause, privilege or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

37. As a result of the foregoing, plaintiff was deprived of his Constitutional rights and has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FIFTH CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
MUNICIPAL LIABILITY

38. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

39. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

40. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and
- iii. fabricating evidence in connection with their prosecution in order to cover up police misconduct; and
- iv. strip searching individuals without a specific, articulable factual basis supporting a reasonable suspicion and probable cause to believe the individual secreted contraband, evidence, or has a weapon and/or controlled substances inside a body cavity, as well as inadequate screening, hiring, retaining, training, and supervising its employees with

respect to this issue.

41. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiff.

42. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.

43. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

44. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiff's constitutional rights.

45. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.

46. The acts complained of deprived the plaintiff of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and
- D. To receive equal protection under the law.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;

- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
January 10, 2017

BY: _____/S_____
GERALD COHEN
JOSHUA FITCH
ILYSSA FUCHS
COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10273
(212) 374-9115

ATTORNEY'S VERIFICATION

ILYSSA FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for plaintiff TRAVIS DOWNER in the within entitled action

That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, he believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
 January 10, 2017

_____/S_____
Ilyssa Fuchs